

Castro Palao De Fide (LA-EN)

Operis moralis pars prima, Tract. IV De Fide, Disp. I, Punct. V, §. II (*Moral Works, Part I, Treatise IV On Faith: Whether the Roman Pontiff is an infallible rule of truth*)

by Fernando de Castro Palao, S.J. (1581–1633), first published 1631

[Online Location of Text Here](#)

- Transcribed from the third edition: *Operis moralis, de virtutibus, et vitiis contrariis, Pars prima. Tertia Editio prioribus auctior, & emendatior. Lugduni: Sumptibus Ioan. Bapt. Devenet, 1656; pp. 241–244.*
- OCR of the original text by AI (claude-fable-5), from page images.
- Translation of the original text performed by AI (claude-fable-5).
- Last Edit: July 3, 2026.
- Version: 1.0
- Selection pages: 241-244 (*Tractatus IV, Disputatio I, Punctum V, §. II, nn. 1-13*)

Tract. IV, Disp. I, Punct. V, §. II — Whether the Roman Pontiff is an infallible rule of truth, such that he can in no way err in proposing matters of faith (pp. 241–244)

Latin	English
Summarium: 1. In Ecclesia necessario constituenda est regula infallibilis. 2. Haec regula non est sola sacra Scriptura. 3. Petro, & eius successoribus commisit Christus regimen Ecclesiae. 4. Haec regula infallibilis in nullo	Summarium. 1. In the Church an infallible rule must necessarily be established. 2. This rule is not sacred Scripture alone. 3. To Peter and his successors Christ committed the government of the Church. 4. This infallible rule resides in no one other than the Roman Pontiff. 5. Whether

<i>Latin</i>	<i>English</i>
alio praeter Romanum Pontificem residet. 5. An errare possit in articulis fidei proponendis? Proponuntur rationes dubitandi. 6. Statuitur conclusio de fide Pontificem errare non posse. 7. Satisfit contrariis numer. 5. adductis, specialiter primo argumento. 8. Satisfit secundo argumento, & examinatur an hunc numero Pontificem sit de fide esse verum Pontificem? Qui negent, & qua ratione probent. 9. Non solum certitudine morali, sed certitudine fidei tenendum est hunc esse verum Pontificem, postquam vniuersalis Ecclesia aliquid de fide credendum proponit. 10. De Pontifice ab vniuersali Ecclesia recepto, antequam veritatem aliquam definiat, seu antequam aliquid statuatur ad rectam Ecclesiae institutionem: probabilius censeo de fide esse, esse verum Pontificem. 11. Explicatur differentia inter hanc propositionem, Non est de fide Vrban. VIII. esse verum Pontificem. & illam, Vrban. VIII. non est verus Pontifex. 12. Satisfit tertio argumento num. 5. adducto, & explicatur diligentia, quam Pontifex facere debet ad veritates fidei proponendas. 13. Reliquis argumentis supradicto n. 5. adductis fit satis. 1 Praemittendum est dari in Ecclesia aliquam regulam infallibilem veritatis, quaeque doctrinam credendam fidelibus proponat, sedetque fidei controuersias; hoc enim ad diuinam prouidentiam maxime pertinet: cum enim nemo sit, qui res fidei suo ingenio assequi possit, & dubitationes suborientes viribus propriis vincere; necessarium erat aliquod medium, quo haec	he can err in proposing articles of faith? The reasons for doubting are set out. 6. The conclusion is established: it is of faith that the Pontiff cannot err. 7. The contrary arguments adduced in n. 5 are answered, especially the first argument. 8. The second argument is answered, and it is examined whether it is of faith that this Pontiff in particular is true Pontiff — who deny it, and by what reasoning they argue. 9. Not only with moral certainty, but with the certainty of faith it must be held that this man is true Pontiff, after the universal Church proposes something to be believed as of faith. 10. Concerning a Pontiff received by the universal Church, before he defines any truth or decrees anything for the right ordering of the Church: I judge it more probable that it is of faith that he is true Pontiff. 11. The difference is explained between this proposition, “It is not of faith that Urban VIII is true Pontiff,” and that one, “Urban VIII is not true Pontiff.” 12. The third argument adduced in n. 5 is answered, and the diligence which the Pontiff must exercise for proposing truths of faith is explained. 13. The remaining arguments adduced in the aforesaid n. 5 are satisfied. 1. It must be premised that there is given in the Church some infallible rule of truth, to propose to the faithful the doctrine to be believed and to settle controversies of faith; for this belongs above all to divine providence: since there is no one who could attain the things of faith by his own ingenuity and conquer arising doubts by his own strength, some means was necessary by which all these could be overcome. Otherwise God would not have provided men

<i>Latin</i>	<i>English</i>
omnia superari possent. Alias Deus non satis de mediis necessariis hominibus prouideret: & imperans res fidei certo, & indubitanter credere, impossibilia imperaret, quod est nimis absurdum.	sufficiently with the necessary means, and, in commanding that the things of faith be believed with certainty and without hesitation, he would be commanding the impossible — which is utterly absurd.
2 Secundo praemittendum est, hanc regulam infallibilem, quaeque quaestiones circa fidem dirimat, non esse solam sacram Scripturam: tum quia circa sacram Scripturam solet esse controuersia, an scilicet haec Scriptura sit canonica, vel non? Ergo ea ipsa sola haec controuersia definiri non potest. Tum quia regula infallibilis, quaeque quaestiones suborientes valet dirimere, debet esse omnibus nota, qualis tamen non est Scriptura sacra, eius enim sensus non facile ab omnibus percipitur: & constat manifeste ex eo quod sectarii haeretici eadem verba nunc sic, nunc alio modo intelligunt.	2. Secondly it must be premised that this infallible rule, which settles the questions arising about the faith, is not sacred Scripture alone: both because concerning sacred Scripture itself there is wont to be controversy — namely whether this Scripture is canonical or not; therefore by it alone this controversy cannot be decided — and because an infallible rule capable of settling arising questions must be known to all, which sacred Scripture is not, for its sense is not easily grasped by all: as is manifestly evident from the fact that sectarian heretics understand the same words now in one way, now in another.
3 Tertio praemittendum est Petro, & eius successoribus commisisse Christum regimen vniuersale Ecclesiae illis verbis, <i>Tu es Petrus, & super hanc petram aedificabo Ecclesiam meam: & tibi dabo clauis regni caelorum</i> , &c. quod luculenter, & erudite satis probat Valent. 2.2. disp. 1. q. 1. punct. 7. a §. 28. & 36. Neque pro solo Petro haec verba dicta sunt, sed pro omnibus illius successoribus: succedunt autem omnes Romani Pontifices legitime electi; vt ex vsu nascentis Ecclesiae vsque in praesentem diem facile probari potest. & erudite probat Sanderus lib. 7. de visibili Ecclesiae monarchia. Turrecremata lib. 2.(?) de Ecclesia, c. 36. & seqq. Valent. disp. 1. q. 1. punct. 7. de fide §. 37. & licet Domin. Sot. in 4 sentent. dist. 24. q. 2. art. 5.	3. Thirdly it must be premised that to Peter and his successors Christ committed the universal government of the Church in those words, “Thou art Peter, and upon this rock I will build my Church: and I will give thee the keys of the kingdom of heaven,” etc. — which Valentia proves lucidly and learnedly enough. Nor were these words spoken for Peter alone, but for all his successors; and all legitimately elected Roman Pontiffs succeed him, as can easily be proved from the usage of the nascent Church down to the present day, and as Sanders learnedly proves, and Torquemada, and Valentia; and although Dominic Soto thought that this successor of Peter is not by divine institution the Roman Pontiff, but could be the bishop of Toledo, or of Seville, or of no diocese — because the words of Christ handing over the power to Peter fixed no see — yet it is most certain from divine institution, made

<i>Latin</i>	<i>English</i>
visum sit hunc successorem Petri non esse ex diuina institutione Romanum Pontificem, sed esse posse Toletanum, vel Hispalensem, vel nullius dioecesis, eo quod verba Christi tradentis potestatem Petro nullam sedem determinauerint. At certissimum est ex diuina institutione, traditione manifestata successorem Petri esse etiam Romae Episcopum, quod copiose, & luculenter probat Val. 2.2. disp. 1. p. 7. §. 38.	manifest by tradition, that the successor of Peter is also the Bishop of Rome, as Valentia copiously and lucidly proves.
4 Quarto praemittendum est hanc regulam infallibilem veritatis in nullo alio residere, nisi in Romano Pontifice; quia cum in aliquo residere debeat, nullus apparet quis sit, nisi Petri successor, quia nemini alteri dictum est nisi Petro, & eius successoribus: <i>Et super hanc petram aedificabo Ecclesiam meam. ego rogabo pro te vt non deficiat fides tua.</i> Item <i>pasce oues meas.</i> Ergo ex Christi autoritate successor Petri auctoritatem habet pascendi fideles omnes infallibili doctrina, tum ad fidem, tum ad mores pertinente. Iis praemissis. 5 Difficultas ergo est, an aliquando errare possit in fidei articulis proponendis? Ratio difficultatis est prima, quia videtur stare posse aliquem eligi, & haberi summum Pontificem a tota Ecclesia, qui tamen vere non sit: sed tunc si definiat aliquam veritatem, non infallibiliter definiet. Ergo errare potest Pontifex in fidei articulis proponendis. Consequentia est legitima, minor videtur nota; quia eatenus Pontifex veritatem aliquam fidelibus credendam infallibiliter proponit, quatenus Spiritus sanctus ei assistit: sed	4. Fourthly it must be premised that this infallible rule of truth resides in no one else than the Roman Pontiff; for since it must reside in someone, no one appears who it could be except the successor of Peter, because to no one else was it said but to Peter and his successors: “And upon this rock I will build my Church”; “I will pray for thee that thy faith fail not”; likewise, “Feed my sheep.” Therefore by Christ’s authority the successor of Peter has the authority of feeding all the faithful with infallible doctrine pertaining both to faith and to morals. These things being premised — 5. The difficulty, then, is whether he can ever err in proposing articles of faith. The first reason for the difficulty is that it seems possible that someone be elected and held as supreme Pontiff by the whole Church who nevertheless truly is not; but then, if he defines some truth, he will not define infallibly. Therefore the Pontiff can err in proposing articles of faith. The consequence is legitimate; the minor seems evident, since the Pontiff infallibly proposes a truth to be believed by the faithful precisely insofar as the Holy Spirit assists him; but the assistance of the Holy Spirit is promised to Peter and to his true successor, not to a simulated and feigned one.

<i>Latin</i>	<i>English</i>
assistentia Spiritus sancti Petro, & vero eius successor est promissa, non autem simulato, & ficto. Ergo. Maior vero propositio, scilicet, quod possit eligi, & haberi aliquis tanquam summus Pontifex, qui tamen vere non sit, probatur primo, potest namque ipse esse haereticus, qualis refertur fuisse Anastasius, cap. Anastasius, 19. distinct. & Honorius, prout refertur in Concilio Constantinopolitano VI. act. 13. & 18. sed cum in haeresim incidit, ipso iure amittit authoritatem, & desinit esse vicarius Christi, & Petri successor: vt tradit Turrecremata in sum. Ecclesiae, lib. 2. cap. 12. ad 7. argum. & lib. 4. p. 2. cap. 18. Driedo de libertate Christiana, c. 14. Simanc. cap. 29. de Catholic. instit. & Canonistae communiter: vt constat ex his, quae adducit Iacobat. lib. 3. de concord. a. 2. Secundo potest eligi non ordinatus, vel non baptizatus, vel cum alio defectu electionem annullante, qualem videtur habuisse Martinus V. electus in Concilio Constantiensi: siquidem non fuit electus iuxta formam praescriptam pro electione Summi Pontificis. Secunda ratio difficultatis est, quia saltem non est de fide hunc Pontificem electum verum esse Petri successorem: siquidem non est de fide certum, esse baptizatum, aut nullum in eius electione defectum substantialem habitum esse. Ergo non poterat esse de fide certum, errare non posse, quia impotentia errandi annexa est, (vt dixi) vero Christi vicario, non simulato. Et confirmari potest exemplo Eucharistiae: licet enim de fide sit in hostia	Therefore. The major proposition — namely that someone can be elected and held as supreme Pontiff who nevertheless truly is not — is proved, first, because he can himself be a heretic, such as Anastasius is reported to have been (c. Anastasius, dist. 19) and Honorius, as related in the Sixth Council of Constantinople, act. 13 and 18; but when he falls into heresy he loses his authority by the law itself (ipso iure) and ceases to be vicar of Christ and successor of Peter, as Torquemada teaches (Summa de Ecclesia, book 2, ch. 12, to the 7th argument, and book 4, part 2, ch. 18), Driedo (On Christian liberty, ch. 14), Simancas (On Catholic institutions, ch. 29), and the canonists commonly, as appears from those whom Iacobatius adduces (book 3 On concord, a. 2). Secondly, there can be elected one not ordained, or not baptized, or with some other defect annulling the election — such as Martin V, elected in the Council of Constance, seems to have had, since he was not elected according to the form prescribed for the election of the Supreme Pontiff. The second reason for the difficulty is that at least it is not of faith that this elected Pontiff is the true successor of Peter, since it is not certain of faith that he is baptized, or that no substantial defect occurred in his election. Therefore it could not be certain of faith that he cannot err, because the impossibility of erring is annexed (as I said) to the true vicar of Christ, not to a simulated one. And this can be confirmed by the example of the Eucharist: for although it is of faith that in a duly consecrated host the body of Christ is present, it is nevertheless not of faith that it is present in this host in particular, because it is not of faith that the one consecrating is a baptized priest having the intention of consecrating: this is believed only with moral certainty. Therefore, likewise, granted it be true and certain of faith

<i>Latin</i>	<i>English</i>
rite consecrata adesse corpus Christi; non tamen de fide est in hac numero hostia adesse: quia non est de fide consecrantem esse sacerdotem baptizatum, habentemque intentionem consecrandi; solum enim id creditur morali certitudine. Ergo similiter esto verum sit, & de fide certum, verum Christi vicarium, & Petri successorem errare non posse in rebus fidei proponendis: at non videtur esse de fide certum, hunc numero errare non posse; quia non videtur esse de fide certum, esse verum Pontificem.	that the true vicar of Christ and successor of Peter cannot err in proposing matters of faith, still it does not seem certain of faith that this man in particular cannot err, because it does not seem certain of faith that he is the true Pontiff. Third: in order that the Pontiff propose some truth to be believed by the faithful, he needs counsel and inquiry and the disputation of the Doctors, which the custom of convoking Councils sufficiently confirms; but in these he can be negligent and rash. Therefore he can then err. Fourth: if the Pontiff be a heretic, he can wish to stain his Church with error and use a definition to impose this stain.
Tertia, vt Pontifex veritatem aliquam fidelibus credendam proponat, indiget consilio, & inquisitione, & Doctorum disputatione: quod satis confirmat vsus congregandi Concilia: sed in his potest esse negligens, & temerarius. Ergo potest tunc errare.	Therefore his definition is not of infallible truth. And I confirm it: if, at a time when the Pontiff is infected with hidden heresy, some doubt about matters pertaining to the faith arises, what can prevent the Pontiff from then ratifying the error and proposing it to the faithful as truth to be believed? Therefore the Pontiff will be able to err. Fifth: there are many writings of the Doctors approved by the Pontiff which nevertheless are not entirely true. Therefore the Pontiff can err. The antecedent is proved from c. Sancta Romana, dist. 15, where Pope Gelasius approves the writings of Cyprian, Chrysostom, Gregory Nazianzen, Basil, and Ambrose; and yet in these writings many things are contained which do not attain the truth. For since in those times the truth had not been elucidated in all matters, and on the other hand they were not canonical writers, they could with reason err, as Cano rightly weighs (De locis, book 7, ch. 3, concl. 2). Sixth: the Pontiff often seems to have defined several false things. For Celestine III, as related in c. Quanto, De divortiis, seems to have held that marriage is dissolved by heresy; and in c. Licet, De sponsa duorum, certain Pontiffs prior to Alexander III are noted to have judged that a ratified marriage is
Quarta, Pontifex si haereticus sit, potest velle Ecclesiam suam errore maculare, & ad hanc maculam imponendam definitione vti. Ergo eius definitio non est infallibilis veritatis. Et confirmo, si hoc tempore, quo Pontifex occulta haeresi infectus sit, suboriretur aliqua dubitatio de rebus ad fidem pertinentibus, quid obstare potest, quominus tunc Pontifex errorem firmet, & pro veritate credendum fidelibus proponat? Poterit ergo Pontifex errare.	
Quinta, plura sunt scripta Doctorum a Pontifice approbata, quae tamen non sunt omnino vera. Ergo Pontifex errare potest. Antecedens probatur ex cap. sancta Romana. 15. dist. vbi a Gelasio Papa approbantur scripta	

<i>Latin</i>	<i>English</i>
Cypriani, Chrysostomi, Gregorii Nazianz. Basilii, & Ambrosii: atqui in his scriptis plura, quae veritatem non attingunt, continentur. Nam cum illis temporibus non erat de omnibus elucidata veritas, & ex alia parte non erant scriptores canonici; merito potuerunt errare, vt recte expendit Cano lib. 7. de locis cap. 3. conclus. 2. Sexta; saepe videtur Pontifex plura falsa definiisse. Coelestin. namque III. prout refertur in cap. quanto, de divortiis, videtur sensisse per haeresim matrimonium dissolui: & in cap. licet de sponsa duorum, denotatur aliquos Pontifices Alexandro III. anteriores iudicasse matrimonium ratum irritari secundo consummato: & in cap. cum essent, de testament. decernitur a diuina lege esse alienum in testamentis plures testes requiri quam duos, vel tres, cum tamen leges ciuiles iustae reputentur, quae plures expostulant. 6 Nihilominus tenenda est veritas Catholica, nullum Pontificem sic ab Ecclesia vniuersali reputatum errare posse in rebus fidei proponendis. Conclusio est recepta ab omnibus Catholicis cum D. Thom. 2.2. q. 1. art. 10. & [print resembles “à”] quaest. 11. art. 2. ad 3. & lib. 4. contra gentes, cap. 76. Vvalden. lib. 2. doctrina antiqua fidei, cap. 47. & 48. Turrecremata lib. 2. sum. a cap. 107. vsque ad 112. Cano de locis lib. 6. a cap. 3. vsque ad 7. Gregor. de Valent. disp. 1. quaest. 1. punct. 7. quaest. 5. circa finem, & quaest. 6. §. 40. & seqq. Bannes 2.2. q. 1. art. 10. dub. 2. praecipue	annulled by a second consummated one; and in c. Cum essent, De testamentis, it is decreed to be foreign to the divine law that more than two or three witnesses be required in wills, although civil laws demanding more are reputed just. 6. Nevertheless the Catholic truth must be held: no Pontiff so reputed by the universal Church can err in proposing matters of faith. The conclusion is received by all Catholics, with St. Thomas (2-2, q. 1, a. 10, and q. 11, a. 2 ad 3, and Contra gentes book 4, ch. 76), Waldensis (Doctrinale antiquitatum fidei, book 2, chs. 47–48), Torquemada (Summa, book 2, chs. 107–112), Cano (De locis, book 6, chs. 3–7), Gregory of Valentia, and Bañez. It is proved manifestly: for when the Pontiff proposes some truth to be believed by the faithful, the faithful themselves are bound to assent to him — otherwise the Pontiff would not have effective authority to rule the Church; but the Church cannot be obliged to give assent to a false proposition,

<i>Latin</i>	<i>English</i>
conclus. 4. Probatur manifeste: nam cum Pontifex veritatem aliquam fidelibus credendam proponit, ipsi fideles ei assentire tenentur, alias non haberet Pontifex auctoritatem efficacem regendi Ecclesiam: sed Ecclesia obligari non potest falsae propositioni assensum praebere; quia alias posset tota Ecclesia errare, quod est contra diuinam prouidentiam, & Christi promissionem dicentis spiritum veritatis semper in Ecclesia mansurum. Ergo nequit a Pontifice summo falsum pro vero proponi. 7 Neque argumenta contraria huic veritati obstant. Ad primum dico, nullum ab vniuersali Ecclesia recipi pro Pontifice summo, & Christi vicario, qui vere esse non possit; quia ad diuinam spectat prouidentiam hoc impedire. Ad primam probationem admitto, Pontificem esse posse haereticum; sic ex communi sententia testatur Bannes 2.2. quaest. 1. art. 10. dub. 2. conclus. 1. Caietan. ibi, & opusculo 1. de authorit. Papae, & in apologia de eadem re, cap. 13. ad 8.(?) Driedo lib. 4. cap. 3. p. 3. Cano lib. 6. cap. vlt. ad 12.(?) Soto in 4. dist. 22. q. 2. art. 2. Corduba cum aliis a se relatis lib. 4. quaest. 3. Aragon. 2.2. quaest. 1. art. 10. tract. de summo Pontifice. Valent. disp. 1. quaest. 1. p. 7. q. 6. §. 40. & ex multis historiis constat plures Pontifices in haeresim lapsos esse, vt de Victore V. [sic; recte I.] Marcellino, Liberio, Honorio, Anastasio II. & aliis tradunt supra relati Doctores. Nam de Victore tradit Euseb. lib. 5. histor. Ecclesiast.	because then the whole Church could err, which is against divine providence and against the promise of Christ, who says the Spirit of truth will remain in the Church forever. Therefore a falsehood cannot be proposed for truth by the supreme Pontiff. 7. Nor do the contrary arguments stand against this truth. To the first I say: no one can be received by the universal Church as supreme Pontiff and vicar of Christ who cannot truly be such; because it belongs to divine providence to prevent this. To its first proof I admit that the Pontiff can be a heretic; so, following the common opinion, testify Bañez, Cajetan (there, and in Opusculum 1 On the authority of the Pope, and in the Apologia on the same matter, ch. 13), Driedo, Cano, Soto, Córdoba (with others cited by him, book 4, q. 3), Aragón, Valentia; and from many histories it appears that several Pontiffs fell into heresy, as the above-cited Doctors relate of Victor [print: “Victor V”; recte Victor I], Marcellinus, Liberius, Honorius, Anastasius II, and others. For of Victor, Eusebius (book 5 of the Ecclesiastical History, next-to-last chapter) relates that he was a heretic. The same is established of Marcellinus, who offered incense to idols; nor can it be said that he did not abandon the faith, whence it is not established that he did not consent in his mind. Of Liberius, Jerome affirms it in his Chronicle; of Anastasius, Gratian reports it (c. Anastasius, dist. 19); of Honorius

<i>Latin</i>	<i>English</i>
c. penult. fuisse haereticum. Idem constat de Marcellino thus offerente idolis. Neque dici potest non dereliquisse fidem, vnde non constat mente non consensisse. de Liberio id affirmat Hieron. in chronicis. de Anastasio refert Gratian. cap. Anastasius, 19. dist. De Honorio vero constat ex epistola Adriani relata in VIII. Synodo act. 7. & ex epistola Agatonis relata in VI. Synodo act. 4. Et quamuis Albertus Pighius lib. 4. de Ecclesiast. hierarchia c. 8. & Ioan. Turrecremata lib. 2. de Ecclesia, cap. 93. conentur ab hac nota hos Pontifices liberare, affirmantes, vel interius in haeresim non consensisse, vel ex falsa informatione fuisse condemnatos: at non est dubitandum, in haeresim incidere potuisse, alias Concilia illa generalia accusationem de haeresi omnino exploderent, vt pote omnino alienam a Pontifice. Verum etsi Pontifex in haeresim incidere possit; nihilominus tamen credo certissimum auctoritatem Pontificiam non amittere, quousque ab Ecclesia deponatur; sic tenent omnes supra relati Doctores; specialiter Bannes, Valent. Caietan. Soto, Canus, Cordub. tum quia reliqui Episcopi in haeresim incidentes retinent suam dignitatem Episcopalem, donec deponantur. Ergo & Pontifex summus. Tum quia de nullo Pontifice possemus esse certi secundum fidem esse verum Pontificem, & aptum proponendi res fidei vniuersali Ecclesiae, cum de nullo possemus certificari non amisisse occulte fidem. Tandem, quia auctoritas Pontificia non fundatur in	it is established from the epistle of Hadrian contained in the Eighth Synod, act. 7, and from the epistle of Agatho contained in the Sixth Synod, act. 4. And although Albert Pighius (book 4 On the ecclesiastical hierarchy, ch. 8) and Juan de Torquemada (book 2 On the Church, ch. 93) try to free these Pontiffs from this mark, affirming either that they did not interiorly consent to the heresy or that they were condemned on false information, still it is not to be doubted that they could fall into heresy — otherwise those general Councils would have rejected outright the accusation of heresy as something wholly alien to a Pontiff. But although the Pontiff can fall into heresy, I nevertheless believe it most certain that he does not lose the pontifical authority until he is deposed by the Church; so hold all the Doctors cited above, especially Bañez, Valentia, Cajetan, Soto, Cano, Córdoba: both because the other bishops who fall into heresy retain their episcopal dignity until they are deposed — therefore also the supreme Pontiff; and because we could be certain according to faith of no Pontiff that he is a true Pontiff, apt to propose matters of faith to the universal Church, since we could be certified of no one that he has not secretly lost the faith. Finally, because the pontifical authority is not founded on the special faith which the Pontiff has — as neither on grace — but is founded on this: that he has been received by the universal Church as vicar of Christ and successor of Peter; and so long as he has been thus received, he has from Christ the power and authority of ruling the Church and of feeding the sheep with the doctrine of faith and morals; and he is the true successor of Christ and of Peter, and united to him — not as to internal faith and holiness, but as to the external administration of the Church. To

<i>Latin</i>	<i>English</i>
fide speciali, quam habet Pontifex, sicut neque in gratia, sed fundatur in eo, quod receptus sit ab vniuersali Ecclesia, vt Christi vicarius, & Petri successor, qui dum sic fuerit receptus, habet a Christo potestatem, auctoritatem regendi Ecclesiam, & pascendi oues fidei, morumque doctrina; verusque est Christi, & Petri successor, ipsique vnitus, non quoad internam fidem, & sanctitatem, sed quoad externam Ecclesiae administrationem. [The following passage (p. 242 right col. top) is the region damaged by ink set-off; bracketed letters reconstructed:] Ad secundam probationem nego eligi [posse?] incapacem; quia ex speciali, & [ordinaria prouidentia, qua?] Deus assistit Ecclesiae, credi debet similem [electionem impe]diendam esse; & dato quod sic eligatur, [de]fectum manifestandum esse, antequam ab [Ecclesia vniuersa(?)]li recipiatur. Quod autem solet circumfe[rri, Ioannam(?)] fuisse, inquam foeminam, fabula est, & haereti[corum commen]tum, vt recte probat Onuphrius in annot. ad [vitam(?)] Ioan. VIII. in cuius probationem extat insig[ne testimonium(?)] Leonis IX. qui fuit plusquam centum annis p[osterior(?)] hic enim Pontifex epistola ad Michaellem, & [... epis]copos c. 25.(?) & habetur 3. tom. Conciliorum, pro[?] Ecclesiae Romanae, contenditque diuina protecti[one ?seruatam] ab ignominiis, quae aliis Ecclesiis acciderunt: in [?in]famiam esse, quod Constantinopolitanae Eccle[siae] foemina praefuerit, quod vocat abominabile scelu[s],	the second proof I deny that one incapable can be elected [text damaged]; for on account of the special and [ordinary providence with which] God assists the Church, it must be believed that such an [election would be] prevented; and, granted that such a one were elected, that the defect would be made manifest before he was received by [the universal Church]. As for the common tale that a woman [Joan] was [Pope], it is a fable and an invention of heretics, as Onuphrius [Panvinio] rightly proves in his annotations on John VIII; in proof of which there stands the illustrious [testimony] of Leo IX, who was more than a hundred years later; for this Pontiff, in the epistle to Michael and [the] bishops [of Constantinople] (ch. 25?), found in tome 3 of the Councils, contends that the Roman Church [has been preserved] by divine protection from the ignominies which befell other Churches, and that it is to the infamy of the Church of Constantinople that a woman presided over it — which he calls an abominable crime and horrible deed. And it is more than evident that if [any] suspicion existed that this had happened to the Roman Church, he would by no means have touched this kind of argument to [censure] the Roman See; wherefore no Catholic ought to doubt that this was a mere invention of heretics. But if someone were elected Pontiff with some defect introduced by [human] law, it is completely purged by the acceptance of the Church: for since the universal Church has authority above [human law], by the very fact that it accepts this Cardinal as true Pontiff, it supplies every defect of the election, if any intervened; and thus he remains true Pontiff.

<i>Latin</i>	<i>English</i>
& ?horri]bile facinus. Est autem plusquam euidens quod [si qua(?)] suspicio foret de eo quod Romanae Ecclesiae id a[c]cidisset, nequaquam hoc genus argumenti attigisse[t ad ? taxan]dam Sedem Romanam, quare nulli Catholicorum [dubium esse(?)] debet illud fuisse merum commentum haeticoru[m]. [Quod si(?)] electus in Pontificem fuerit cum aliquo defectu iur[e ?humano] introducto, ex acceptione Ecclesiae integre purg[atur: cum] enim Ecclesia vniuersalis habeat auctoritatem sup[ra ius hu(?)]manum; hoc ipso, quod acceptat hunc Cardinalem [pro(?)] vero Pontifice, supplet omnem defectum elect[ionis, si] quis interuenit, & sic ille manet verus Pontifex. 8 Secundum argumentum tangit grauem quaestion[em] scilicet de fide sit hunc numero Pontificem esse vere [Christi] vicarium, & Petri successorem. Negant plures Doct[ores in?] manuscriptis. Didacus de Arce Lector Theologus 2.[2.?] art. 10. & ibi Mag. Mancio q. de authorit. Papae. ad 3. Id sup[ponit] ibidem Deza ex Societ. IESV dub. 1. de potestate Pontificis [?]o ante solutionem argumentorum. & clarius in quaest. de ca[non]izat. Sanctorum, vbi subdit, constare potest alicui, quod Pontifex non sit verus Pontifex, quia baptizauit illum abs[que] intentione. Bonauentura ibid. tenet tanquam probabilem, e[tsi] probabiliorem censeat oppositam. Torres publice illam defendit Compluti, cui subscripsit Gabr. Vasq. Cardinal. Bellarmin. t. 1. tract. de concilior. authorit.	8. The second argument touches a grave question, namely whether it is of faith that this Pontiff in particular is truly the vicar of Christ and successor of Peter. Several Doctors deny it in manuscripts: Diego de Arce, professor of theology, on 2-2(?) art. 10, and there Master Mancio (q. on the authority of the Pope, ad 3); the same is presupposed there by Deza of the Society of Jesus (dub. 1 on the power of the Pontiff, before the solution of the arguments, and more clearly in the question on the canonization of saints, where he adds that it can be evident to someone that the Pontiff is not a true Pontiff, because [the minister] baptized him without intention). Bonauentura(?) holds it there as probable, though he judges the opposite more probable. Torres defended it publicly at Alcalá, and Gabriel Vázquez subscribed to it. Cardinal Bellarmine (tome 1, treatise On the authority of Councils, ch. 9), replying to the last objection, says that it is held only by natural

<i>Latin</i>	<i>English</i>
c. 9. Ad postremam obiectionem ait, naturali solum euidencia, aut sola fide humana haberi Concilium Nyssenum [sic; Bellarmine: Nicaenum], & Ephesinum fuisse legitime congregatum & hoc sufficere, vt definita ab illis habeantur tanquam de fide. Constat autem (quod praesens institutum spectat) eandem esse quaestionem, an sit de fide hoc Concilium fuisse, vel esse legitimum: & an sit de fide hunc numero Pontificem esse verum Papam? Gregorius Valentia 2.2. disp. 1. q. 1. p. 7. in q. 5. §. 19.(?) ad hanc expediendam difficultatem, vt probabilem admittit posse eligi in Pontificem non baptizatum, aut iure diuino incapacem, quia id graues Doctores admittunt: absolute illam defendit Bannes 2.2. q. 1. art. 10. d. 2. ad 2. vbi affirmat hanc propositionem: Hic Pontifex numero est verus Papa, esse solum certam certitudine morali, cui speculatiue potest subesse falsum. Probant primo, quia non est de fide hunc electum in Pontificem esse baptizatum. Ergo neque esse verum Pontificem. Secundo potest definire res fidei, & vniuersalem Ecclesiam regere, quin sit verus Pontifex; sufficit si vt talis existimetur, & reputetur: si enim praetori incapaci confert respublica iurisdictionem quando vt legitimus existimatur, ne(?) ex actibus nullis graua inconuenientia sequantur: quare idem non dicemus in Pontifice incapaci, qui vt legitimus reputatur, conferre illi Christum omnem iurisdictionem, & auctoritatem, sicuti si vere Pontifex esset.	evidence, or by human faith alone, that the Council of Nicaea [print: “Nyssenum”] and that of Ephesus were legitimately assembled, and that this suffices for what they defined to be held as of faith. But it is clear (as concerns our present purpose) that it is the same question, whether it is of faith that this Council was or is legitimate, and whether it is of faith that this Pontiff in particular is true Pope. Gregory of Valentia, to expedite this difficulty, admits as probable that one not baptized, or incapable by divine law, can be elected Pontiff, since grave Doctors admit it; Bañez defends it absolutely (2-2, q. 1, a. 10, dub. 2, ad 2), where he affirms that this proposition — “This Pontiff in particular is true Pope” — is certain only with moral certainty, beneath which, speculatively, falsehood can lie. They prove it, first: it is not of faith that this man elected Pontiff is baptized; therefore neither that he is true Pontiff. Secondly: he can define matters of faith and rule the universal Church without being true Pontiff; it suffices that he be considered and reputed such: for if the commonwealth confers jurisdiction on an incapable praetor when he is thought legitimate — lest grave inconveniences follow from null acts — why shall we not say the same of an incapable Pontiff who is reputed legitimate: that Christ confers on him all jurisdiction and authority, just as if he were truly Pontiff?

<i>Latin</i>	<i>English</i>
9 Caeterum tenendum existimo non solum certitudine morali, cui falsum subesse potest, vt dicit Bannes, sed certitudine fidei electum in Pontificem, & ab vniuersali Ecclesia receptum esse verum Papam, Christi vicarium, & Petri successorem: quod non solum existimo esse ita tenendum, postquam aliquam veritatem credendam fidelibus proposuit, & viam salutis demonstraui, sed etiam antequam aliquid horum fecerit: eo enim ipso, quo ab vniuersali Ecclesia, vt verus Pontifex recipitur, de fide est, esse Christi vicarium, & Petri successorem. Et quidem in priori statu tum Pontifex aliquam propositionem credendam fidelibus proponit, esse tunc de fide esse verum Pontificem, tenet Valen. supra relatus. Aragon. 2.2. q. 1. art. 10. tract. de Conciliis, dub. principali, ad 3. principale. vbi postquam probauerat hoc Concilium esse legitimum secundum fidem, subdit: Eadem ratione probari potest, [Gregorium(?)] esse verum Pontificem, & baptizatum. Idem docet Lud[ouicus] de Leon ibid. & ante illum Mag. [?] [...] Doctor And. Martines d. 4. [?] ibi tract. de author. Papa, d. 1. & nouissime P[?] [...] per totam. Et probari facile potest primo. Ille secundum fidem est verus Pontif. cui Christus Dominus praecipit obedire in his, quae ad fidem, & mores pertinent: sed [de facto?] legitime electo, & ab vniuersali Ecclesia recepto praecipit Christus Dominus obedire, cum aliquid ad vniuersalem Ecclesiam pertinens statuit. Ergo de fide est legitime	9. But I judge that it must be held — not only with moral certainty, beneath which falsehood can lie, as Bañez says, but with the certainty of faith — that the man elected Pontiff and received by the universal Church is true Pope, vicar of Christ, and successor of Peter; and I judge this must be so held not only after he has proposed some truth to the faithful to be believed and pointed out the way of salvation, but even before he has done any of these things: for by the very fact that he is received by the universal Church as true Pontiff, it is of faith that he is the vicar of Christ and successor of Peter. And indeed, as to the former state — that when the Pontiff proposes some proposition to be believed by the faithful it is then of faith that he is true Pontiff — this is held by Valentia, cited above; by Aragón (2-2, q. 1, a. 10, treatise On Councils, principal doubt, to the 3rd principal argument), where, after proving that this Council is legitimate according to faith, he adds: “By the same reasoning it can be proved that [N.] is true Pontiff, and baptized”; the same is taught by Luis de León there, and before him by Master [?]; by Doctor Andrés Martínez [?]; and most recently by P.[?] throughout. And it can easily be proved. First: he is according to faith the true Pontiff whom Christ the Lord commands us to obey in the things pertaining to faith and morals; but Christ the Lord commands us to obey the man legitimately elected and received by the universal Church, when he decrees something pertaining to the universal Church; therefore it is of faith that the man legitimately elected and received by the universal Church is true Pontiff. The conclusion follows evidently from the premises; and the premises I prove thus. The major — that he is true Pontiff whom Christ the Lord commands us to obey

<i>Latin</i>	<i>English</i>
electum, & ab vniuersali Ecclesia receptum esse verum Pontificem. Conclusio euidenter sequitur ex praemissis. Praemissas autem sic probo. Et quidem illa maior propositio, scilicet illum esse verum Pontificem, cui Christus Dominus praecipit obedire, videtur probari ex illis locis, quibus Petro, eiusque successoribus contulit potestatem pascendi oues, fidei, morumque doctrina: quam potestatem nemini, nisi Petri successoribus contulit. Ergo nullus alius nisi successor Petri habet potestatem pascendi oues, fidei, morumque institutis. Minor autem propositio probat, nempe de fide esse Pontifici electo, & ab vniuersali Ecclesia recepto obediendum esse in rebus ad fidem, & mores pertinentibus, quia de fide est fideles obligatos esse obedire ei, quem superiorem agnoscunt: sed cum legitime aliquis ab Ecclesia in Pontificem, & caput supremum eligitur, & acceptatur, vt superior agnoscitur. Ergo huic tenentur fideles obedire. Et confirmo, si Pontifex electus definiat aliquam veritatem fidei, & Ecclesiae credendam proponat, errare non potest secundum fidem. Ergo secundum fidem est verus Papa. Quia verus Papa est, qui habet auctoritatem ad infallibiliter definiendum, & Ecclesiam Dei obligandam. Confirmo secundo. Ille est verus Pontifex, qui habet potestatem confirmandi Fratres, ne in fide vacillent, iuxta illud Lucae 22. <i>Et tu aliquando conuersus confirma fratres tuos</i>; sed hic numero Pontifex definiens aliquam veritatem confirmat fratres in fide, cum antea circa illam dubitarint: & post factam definitionem vnam	— seems proved from those passages in which he conferred on Peter and his successors the power of feeding the sheep with the doctrine of faith and morals: a power he conferred on no one except the successors of Peter; therefore no one else but the successor of Peter has the power of feeding the sheep with the institutes of faith and morals. The minor is proved — namely that it is of faith that the Pontiff elected and received by the universal Church must be obeyed in matters pertaining to faith and morals — because it is of faith that the faithful are obliged to obey him whom they acknowledge as superior; but when someone is legitimately elected by the Church as Pontiff and supreme head, and is accepted, he is acknowledged as superior; therefore the faithful are bound to obey him. And I confirm it: if the elected Pontiff defines some truth of faith and proposes it to the Church to be believed, he cannot err according to faith; therefore according to faith he is true Pope — for the true Pope is he who has the authority to define infallibly and to oblige the Church of God. I confirm it secondly: he is true Pontiff who has the power of confirming the brethren lest they waver in the faith, according to Luke 22, “And thou, being once converted, confirm thy brethren”; but this Pontiff in particular, in defining some truth, confirms the brethren in the faith, since before they had doubts about it, and after the definition has been made it is no longer permitted to doubt; therefore this man is true Pontiff. — I prove it secondly: after the Council of Trent defined some truth and the Pontiff confirmed it, it is certain according to faith that this Council was legitimately assembled; therefore also, after this Pontiff has defined some truth to be believed with divine faith, it is certain with the same faith that he was legitimately elected, and therefore true Pontiff. The

<i>Latin</i>	<i>English</i>
[?iam], non licet dubitare. Ergo hic est verus Pontifex. Secundo probo, postquam Concilium Tridentinum aliquam veritatem definiuit, & Pontifex confirmauit, est certum secundum fidem hoc Concilium esse legitime congregatum. Ergo etiam postquam hic Pontifex definiuit aliquam veritatem fide diuina credendam, est certum eadem fide esse legitime electum, atque adeo verum Pontificem. Consequentia est euidens, & a nemine nunquam negata; quia est eadem prorsus ratio de hoc Concilio, & de hoc Pontifice. Antecedens vero sic probatur. De fide est Concilium legitime congregatum, & a Pontifice confirmatum obligare ad credendum: non legitime congregatum non habere hanc vim, & efficaciam. Sed Concilium Tridentinum obligat ad credendum. Ergo fuit rite congregatum. Quae enim in hoc discursu fallacia esse potest, cum consequentia sit euidens, maior certa secundum fidem, minor eadem gaudet certitudine? Alias nullum Concilium obligaret ad credendum definitis ab illo; quia non est maior ratio de aliis, quam de Trident. Tertio probo; quia omnis propositio de fide potest inferri ex duplici praemissa de fide, vel, vt aliis placet, altera de fide, altera cognita(?) lumine naturali. Sed ista propositio: Papa definiens non potest errare, est certa de fide: Ergo potest inferri ex duplici praemissa modo dicto: quod tamen nulla ratione fieri potest, vt patebit discurrenti, nisi propositio ista sit de fide, Hic Pontifex definiens est verus Papa: nam in quocunque syllogismo inferatur conclusio illa, Papa definiens non potest	consequence is evident and never denied by anyone, because the reasoning is exactly the same for this Council as for this Pontiff. The antecedent is proved thus: it is of faith that a Council legitimately assembled and confirmed by the Pontiff obliges to belief, and that one not legitimately assembled does not have this force and efficacy; but the Council of Trent obliges to belief; therefore it was duly assembled. For what fallacy can there be in this reasoning, when the consequence is evident, the major certain according to faith, and the minor enjoys the same certainty? Otherwise no Council would oblige to belief in the things defined by it, for there is no greater reason for the others than for Trent. — I prove it thirdly: every proposition of faith can be inferred from a double premise of faith, or — as others prefer — one of faith and the other known by the natural light. But this proposition, “The Pope defining cannot err,” is certain of faith; therefore it can be inferred from a double premise in the way described — which, however, can in no way be done (as will be plain to anyone who works through it) unless this proposition is of faith: “This Pontiff defining is true Pope.” For in whatever syllogism that conclusion, “The Pope defining cannot err,” is inferred, there must be assumed as minor: “This Pontiff defining is true Pope” — and since this is not known by the natural light, it must necessarily be of faith; otherwise the conclusion would not be of faith. To this argument Bañez (loc. cit.) replies that, for a conclusion of faith to be inferred, it is not required that both premises be of faith, or one of faith and the other evident; it suffices that one be of faith and the other morally certain, because then the conclusion does not follow from that morally certain proposition as from a cause, but as from a condition sine qua non, or as from something applying [the

<i>Latin</i>	<i>English</i>
errare, debet assumi, vt minor, Hic Pontifex definiens est verus Papa: quae cum non sit nota lumine naturali, necessario debet esse de fide, alias conclusio non esset de fide. Huic argumento respondet Bannes loco citato, non requiri, vt conclusio aliqua de fide inferatur vtramque praemissam de fide esse, vel vnam de fide, & alteram euidentem; sed sufficere vnam esse de fide, & alteram moraliter certam, quia tunc conclusio non sequitur ex illa propositione moraliter certa, tanquam ex causa, sed tanquam ex conditione, sine qua non, siue vt applicante: Et exemplo praedicatoris illustrat, qui si rite tibi proponat doctrinam Euangelicam, teneris fide diuina veritatibus propositis assentiri: cum tamen non sit fide diuina certum, hunc praedicatorem esse infallibilis veritatis. Sed haec solutio facillimo negotio praecluditur, argumento deducto ab inconuenienti: si enim vera esset, sequeretur hanc propositionem esse de fide, sub hac numero hostia consecrata est corpus Christi, quia reuera infertur per evidentem consequentiam ex vna de fide, qualis est ista, In omni hostia debite consecrata est corpus Christi: & insuper infertur tanquam ex conditione, & vt applicante ex altera certa moraliter; scilicet haec hostia est debite consecrata. Ergo sub hac hostia est corpus Christi, erit propositio de fide? Idem argumentum formari potest de his propositionibus. Hic paruulus baptizatus recipit gratiam, iste qui ordinatur est sacerdos, & de aliis similibus. quas compertum est apud omnes, non esse de fide; cum	cause]. And he illustrates it by the example of a preacher: if he duly proposes to you the evangelical doctrine, you are bound to assent with divine faith to the truths proposed, although it is not certain with divine faith that this preacher is of infallible truth. But this solution is blocked with the greatest ease by an argument from an unacceptable consequence: for if it were true, it would follow that this proposition is of faith — “Under this host in particular the consecrated body of Christ is present” — for it really is inferred by evident consequence from one premise of faith, namely, “In every duly consecrated host the body of Christ is present,” and it is moreover inferred, as from a condition and as from something applying, from another premise that is morally certain, namely, “This host has been duly consecrated.” Will “under this host is the body of Christ” therefore be a proposition of faith? The same argument can be formed about these propositions: “This baptized infant receives grace,” “this man being ordained is a priest,” and other similar ones — which, as all agree, are not of faith, since falsehood can lie beneath them from a defect of intention in the one baptizing, ordaining, or consecrating. Nor does the example of the preacher stand in the way: for although the preacher is not of infallible truth in other matters, yet precisely as he preaches here and now you must believe him to be of infallible truth, since you are obliged to assent to his words with divine faith.

<i>Latin</i>	<i>English</i>
possit illis subesse falsum ex defectu intentionis baptizantis, ordinantis, & consecrantis. Neque exemplum de praedicatore obstat; quia licet praedicator aliis in rebus non sit infallibilis veritatis: at prout hic, & nunc praedicat, credere debes infallibilis veritatis esse; siquidem obligaris eius dictis fide diuina assentiri. 10 Quod si de Pontifice ab Ecclesia vniuersali recepto loquamur, antequam veritatem aliquam fidelibus credendam proponat, seu antequam pro vniuersali Ecclesia aliquid statuatur ad rectam morum institutionem: aliquibus placet non esse certum de fide esse verum Pontificem, sed solum esse certum certitudine morali longe maiori quam sit in supradictis propositionibus de hostia consecrata, & de hoc homine baptizato, vel ordinato. Nam in his propositionibus nullus adest exterior effectus, qui sit signum existentiae corporis Christi, vel gratiae, aut characteris in Baptismo, & ordinatione recepti. At in Pontifice adest vniuersalis Ecclesiae consensus, quod est signum euidens esse illum verum Pontificem. Caeterum mihi probabilius est etiam in hoc statu de fide esse, esse verum Pontificem, quod sentit Valent. disp. 1. p. 7. quaest. 5. § deinde dicimus, pag. 225.(?) Suarez supra disp. illa 10. sect. 5. praecipue ad primum arg. & videtur esse sententia August. tom. 6. in epist.(?) contra [? epist.] Donat. & tom. 2. epist. 111.(?) Irenaei lib. 3. cap. 3. Basil. Ambros. Hieron. quos refert Manc. (?) 2.2. q. 1. art. 10. de autoritate Papae ad 5. fauent sacra Concilia: nam VI. Synodus nominatim respicit	10. But if we speak of a Pontiff received by the universal Church before he proposes any truth to the faithful to be believed, or before he decrees anything for the universal Church for the right ordering of conduct: some hold that it is not certain of faith that he is true Pontiff, but only certain with a moral certainty far greater than in the aforesaid propositions about the consecrated host and about this man's being baptized or ordained. For in those propositions there is no exterior effect present which would be a sign of the existence of the body of Christ, or of the grace or character received in baptism and ordination; but in the case of the Pontiff there is present the consensus of the universal Church, which is an evident sign that he is true Pontiff. Nevertheless, to me it is more probable that even in this state it is of faith that he is true Pontiff — which is the view of Valentia and Suárez (disp. 10, sect. 5, especially in the reply to the first argument), and it seems to be the opinion of Augustine, Irenaeus (book 3, ch. 3), Basil, Ambrose, Jerome, whom Mancio(?) cites. The sacred Councils favor it: for the Sixth Synod expressly regards Agatho, confessing him true Pontiff; the Council of Chalcedon, Leo; the Council of Milevis, Innocent; and finally in c. de libellis, dist. 20, Silverius, Zosimus, Innocent and others are approved as true and legitimate Pontiffs. But I prove it by arguments. First: the universal

<i>Latin</i>	<i>English</i>
Agathonem, confitendo illum verum Pontificem. Concilium Chalcedonense Leonem, Concilium Mileuitanum Innocent. III. [sic; ?recte I.] ac tandem in cap. de libellis, dist. 20. approbantur tanquam veri, & legitimi Pontifices Siluerius, Zozimus, Innocent. & alii. Sed rationibus probo, primo. Vniuersalis Ecclesia recipit Vrbani VIII. tanquam verum Pontificem. Ergo inconcussa fide tenendum est, esse verum Papam. Probo consequentiam, quia haec est euidens illatio. Vniuersalis Ecclesia recipit tanquam veram hanc scripturam. Ergo est de fide hanc scripturam esse veram. Video te respondere posse, aliter, & aliter Ecclesiam recipere hanc scripturam, vt veram, & hunc vt verum Pontificem; scripturam enim recipit tanquam certam certitudine infallibili fidei diuinae: at hunc Pontificem recipit tanquam certum certitudine morali, quia probabilissime censet in hoc Pontifice concurrere omnia necessaria, vt sit verus Papa. Sed haec solutio infirmari potest ex Bulla Martini V. relata in Concilio Constanciensi: vbi in col. 14. dicitur praetendendum esse ab haereticis, qui Ecclesiae reconciliari cupiunt, quod credant Papam, qui pro tempore fuerit ab vniuersali Ecclesia receptus, esse verum successorem Petri, & habere supremam potestatem in Ecclesia. Ergo vere Ecclesia proponit tanquam certum certitudine fidei diuinae hunc esse verum Papam: alias non peteret, credi fide diuina ab iis, qui reconciliantur Ecclesiae.	Church receives Urban VIII as true Pontiff; therefore with unshaken faith it must be held that he is true Pope. I prove the consequence, because this is an evident inference: the universal Church receives this scripture as true; therefore it is of faith that this scripture is true. I see that you can reply that the Church receives this scripture as true in one way, and this man as true Pontiff in another: for it receives the scripture as certain with the infallible certainty of divine faith, but this Pontiff it receives as certain with moral certainty, because it judges it most probable that in this Pontiff all things necessary for him to be true Pope concur. But this solution can be overthrown from the Bull of Martin V contained in the Council of Constance, where (col. 14) it is said that of the heretics who desire to be reconciled to the Church it must be required that they believe that the Pope who for the time being exists, having been received by the universal Church, is the true successor of Peter and has supreme power in the Church. Therefore the Church truly proposes, as certain with the certainty of divine faith, that this man is true Pope; otherwise she would not demand that it be believed with divine faith by those who are being reconciled to the Church. Secondly: the Church — above all as joined to its head — cannot err; but the universal Church together with its head holds Urban VIII to be true Pope; therefore it must be held by divine faith — or else it must be said that the Church together with its head can err by holding for true Pope one who truly is not. The Doctors of the contrary opinion reply that error is twofold, practical and speculative. They call error practical when one errs against prudence, which can in no way happen here, since, all circumstances considered, it is a prudent judgment that this man is

<i>Latin</i>	<i>English</i>
Secundo, Ecclesia, & maxime coniuncta suo capiti non potest errare: sed vniuersalis Ecclesia cum suo capite tenet Vrbanum VIII. esse verum Papam: ergo fide diuina tenendum est; vel dicendum est Ecclesiam cum suo capite posse errare tenendo pro vero Papa eum, qui vere non est. Respondent Doctores contrariae sententiae duplicem esse errorem, & practicum, & speculatiuum: practicum autem errorem vocant quando secundum prudentiam erratur, quod nullo modo contingere potest; cum attentis omnibus circumstantiis prudens iudicium est hunc esse legitimum Papam: speculatiuus vero error vocatur, qui de re iudicat aliter, quam est in se. Hunc autem errorem dicunt contingere posse in assensu huius Pontificis: sicuti de facto contingit in assensu matrimonii eunuchorum; multo enim tempore iudicauit Ecclesia hos esse habiles ad matrimonium, a quo errore speculatiuo per Sixtum V. purgata fuit definitione praestita super hac re. Haec tamen responsio facile repellitur; quia Ecclesia vniuersalis in his, quae proponit circa inanimatam regulam fidei, quae est Scriptura, non solum practice, sed neque speculatiue errare potest. Ergo neque etiam errare potest in accipienda fidei regula animata, qualis est Summus Pontifex; cum enim Ecclesia ab Spiritu sancto regatur, & a Christo Domino dictum fuerit, cum venerit ille, scilicet Paraclitus, docebit vos omnem veritatem; impium erit dicere Ecclesiam speculatiue errare posse circa	legitimate Pope; speculative error is that which judges about a thing otherwise than it is in itself. This latter error, they say, can occur in the assent about this Pontiff — just as in fact it occurred in the assent about the marriages of eunuchs: for a long time the Church judged them capable of marriage, from which speculative error it was purged through Sixtus V by the definition issued on this matter. But this response is easily repelled: for the universal Church, in the things it proposes concerning the inanimate rule of faith, which is Scripture, can err neither practically nor even speculatively. Therefore neither can it err in accepting the animate rule of faith, which is the Supreme Pontiff; for since the Church is ruled by the Holy Spirit, and since it was said by Christ the Lord, “When he, the Paraclete, shall come, he will teach you all truth,” it will be impious to say that the Church can err speculatively concerning its own head, judging and proposing as its true head one who in reality is not. Nor does the instance adduced about the eunuchs prove anything: for it is one thing that the Church tolerated and permitted the marriages of eunuchs, another that it positively judged them to be true marriages. The first it did; the second not at all, for the Church had never applied itself to examining this truth about the eunuch’s incapacity for marriage, and so had passed no positive judgment on it. Nor is it any wonder that this truth lay hidden so long, for the Church is compared in sacred Scripture to the dawn (Cant.), which, as Gregory notes (Moral.), from its rising ever grows in brightness unto the perfect day; whence in the Councils we see many truths, which before lay hidden, brought forth anew into the light, whereby the Church’s knowledge and science daily increases and grows. Fourthly: by Catholic faith we believe not only the

<i>Latin</i>	<i>English</i>
suum caput, iudicando, & proponendo pro vero capite, quod re vera non est. Neque instantia allata de eunuchis quidquam probat. Quia aliud est Ecclesiam tolerasse, & permisisse matrimonia eunuchorum, & aliud positue iudicasse esse vera matrimonia. Primum fecit, secundum minime, quia nunquam Ecclesia se applicauerat ad examinandam hanc veritatem de inhabilitate eunuchi ad matrimonium: & sic nullum posituum iudicium circa illam tulerat. Neque mirandum est, quod haec veritas tanto tempore latuerit; quia Ecclesia in sacra Scriptura comparatur aurorae, Cant. 3.[sic; ?6] quae vt notauit Gregor. lib. 4.(?) moral. c. 15. & 19. ab ortu suo semper crescit in claritate vsque ad perfectam diem. Vnde in Conciliis videmus plures veritates, quae antea latebant, in lucem denuo prodiiisse, quibus Ecclesiae cognitio, & scientia in dies augetur, & crescit. Quarto, fide Catholica credimus non solum Ecclesiam in communi, sed hanc numero Ecclesiam Romanam, quae modo est sub Urbano VIII. esse veram, & legitimam Ecclesiam. Ergo eadem fide credere debemus Urbanum VIII. esse verum Pontificem; quia licet non indiuiduetur haec Ecclesia ab hoc determinato capite, cum eo mortuo eadem numero perseuerat sub singulis successoribus pro tempore existentibus: indiuiduatur tamen omnino, & specificatur, vt est Ecclesia hierarchica etiam Sede vacante ex ordine ad verum caput. Ergo cum de facto datur illi caput ex consensu vniuersalis Ecclesiae, necessario dicendum est illud	Church in general, but this Roman Church in particular, which now exists under Urban VIII, to be the true and legitimate Church. Therefore with the same faith we must believe Urban VIII to be true Pontiff. For although this Church is not individuated by this determinate head — since at his death it perseveres numerically the same under the several successors existing for the time — it is nevertheless altogether individuated and specified, insofar as it is the hierarchical Church (even while the See is vacant), by its ordering to a true head. Therefore, when in fact a head is given to it by the consensus of the universal Church, it must necessarily be said that this is a true head, because the head belongs to the constitution of the Church no less than the members — nay, more than they, since it is the more principal part; but the Church cannot consist of members which are not truly members (whatever be said about what the notion of “member” consists in); therefore neither can it stand under a head which is not truly its head. From all this it is clear that our opinion rests on a twofold most firm foundation: the one drawn from the use of the power of defining, which all Roman Pontiffs enjoy as legitimate successors of Peter; the other from the common and universal acceptance of the Church — for to these two heads all the arguments adduced for our opinion are reduced, and by them the argument of our adversaries stands dissolved. For we say that it is of faith that the Roman Pontiff, by the very fact that he has been received by the universal Church, is true Pontiff — and consequently that it is of faith that he is baptized and fit and capable of the aforesaid dignity — because the Church joined to its head cannot err in this universal acceptance; nor is it to be believed that the divine Spirit would permit this. As for what is

<i>Latin</i>	<i>English</i>
esse verum caput; quia ad constitutionem Ecclesiae non minus pertinet caput, quam membra: imo magis caput, quia est principalior pars, sed Ecclesia non potest constare membris, quae vere non sint membra, quidquid sit de eo, in quo consistit ratio membri. Ergo neque etiam potest constare capite, quod vere non sit caput. Ex his constat nostram sententiam duplici firmissimo fundamento niti; altero desumpto ex vsu potestatis definiendi, qua gaudent vniuersi Romani Pontifices, tanquam legitimi successores Petri; altero ex communi, & vniuersali acceptione Ecclesiae; ad haec enim duo capita reducuntur rationes omnes pro nostra sententia adductae; quibus dissolutum manet argumentum aduersantium. Dicimus namque de fide esse Romanum Pontificem, eo ipso, quo ab vniuersali Ecclesia receptus sit, esse verum Pontificem, & consequenter de fide esse, esse baptizatum, & habilem, & capacem supradictae dignitatis; quia Ecclesia iuncta suo capiti non potest in hac vniuersali acceptione errare: neque credendum est de diuino Spiritu hoc permissurum. Ad illud vero quod dicitur de potestate definiendi, posse, inquam, annecti Pontifici vero, vel reputato, iam supra reieciimus, vtpote sine fundamento dictum, & locis Scripturae satis contrarium. 11 Pro complemento huius quaestionis aduerto esse magnum discrimen inter hanc propositionem, <i>Non est de fide Vrbanum VIII. esse verum</i>	said about the power of defining — that it can be annexed to a Pontiff whether true or merely reputed — we have already rejected it above, as said without foundation and quite contrary to the passages of Scripture. 11. For the completion of this question I note that there is a great difference between this proposition, “It is not of faith that Urban VIII is true Pontiff,” and that one, “Urban

<i>Latin</i>	<i>English</i>
<i>Pontificem, & illam, Vrbanus VIII. non est verus Pontifex.</i> Nam affirmare hanc secundam propositionem, scilicet, Vrbanus VIII. non est verus Pontifex, est propositio in primis temeraria, vtpote sine vllo prorsus fundamento asserta, & communi fidelium consensui repugnans. Est etiam scandalosa: quippe quae ansam praebet schismaticis ad perseuerandum in separatione ab hoc capite Ecclesiae Romanae, & haereticis etiam ad deridendum fideles, quod venerentur tanquam verum caput, quod re vera est ficte caput, imo & Catholicis, vt non assentiantur definitis ab hoc Pontifice, siquidem non est verus Pontifex: ac tandem affirmans supradictam propositionem erit suspectus de haeresi, & tanquam haereticus puniri deberet: vt bene notauit Bannes 2.2. q. 1. art. 10 dub. 2. §. nihilominus. Quia negans hunc esse Pontificem post vniuersalem Ecclesiae acceptionem, videtur plane negare in Ecclesia esse potestatem eligendi verum Pontificem, legitimumque successorem Petri. Quare dicendum esse reor adeo certum esse Vrbanum VIII. v.g. esse verum Papam, vt etiamsi id non esset de fide, multo certius esset, quam est, in hac hostia consecrata esse corpus Christi; quia moraliter loquendo facilius potuit interuenire defectus in consecratione hostiae, propter Sacerdotis obliuionem, malitiam, seu defectum intentionis, vel potestatis, quam in eo, quod Ecclesia vniuersalis acceptet hunc pro vero Pontifice, cum tamen non sit. Illa tamen propositio, quod scilicet de fide sit hunc Pontificem esse verum	VIII is not true Pontiff.” For to affirm this second proposition — namely, “Urban VIII is not true Pontiff” — is a proposition, in the first place, temerarious, as asserted without any foundation whatever and repugnant to the common consent of the faithful. It is also scandalous, since it gives a handle to schismatics to persevere in their separation from this head of the Roman Church, and to heretics to deride the faithful for venerating as true head what in reality is a feigned head — nay, to Catholics too, not to assent to the things defined by this Pontiff, seeing that he is not true Pontiff; and finally, he who affirms the aforesaid proposition will be suspect of heresy, and would deserve to be punished as a heretic, as Bañez well noted (2-2, q. 1, a. 10, dub. 2, §. nihilominus), because he who denies that this man is Pontiff, after the universal acceptance of the Church, seems plainly to deny that there is in the Church the power of electing a true Pontiff and legitimate successor of Peter. Wherefore I think it must be said that it is so certain that Urban VIII (for example) is true Pope, that even if it were not of faith, it would be much more certain than it is that in this consecrated host is the body of Christ; because, morally speaking, a defect could more easily occur in the consecration of a host — through the priest’s forgetfulness or malice, or a defect of intention or of power — than in this, that the universal Church should accept this man for true Pontiff when he is not. Yet that proposition — namely, that it is of faith that this Pontiff is true Pontiff — is to me most certain; nevertheless I do not dare to brand the contrary with any grave censure, seeing that so many and such grave Doctors have defended it.

<i>Latin</i>	<i>English</i>
Pontificem, mihi certissima est: non tamen audeo contrariam aliqua graui nota inurere, siquidem tot, tam grauesque Doctores illam defensarunt. 12 Tertium argumentum n. 5. adductum, quo probabatur Pontificem errare posse in propositione fidei, desumptum erat ex diligentia, & inquisitione, quam facere Pontifex videtur obligatus in rebus fidei definiendis. Cui argumento dupliciter respondemus. Primo affirmando non esse necessariam hanc diligentiam, vt Pontifex certo, & infallibiliter definiat; sed solum esse necessarium, vt prudenter, & absque peccato ad definiendum procedat; sicuti ad dispensationem concedendam debet causam inuestigare; non quia necessaria talis inuestigatio sit ad dispensationis valorem, sed quia est necessaria ad rectum, & conuenientem illius iurisdictionis vsum; sic in praesenti. Quare si de facto ad definitionem procederet Pontifex, omissa debita diligentia, dicendum est definiturum infallibiliter veritatem. sic Valent. 2.2. disp. 1. q. 1. punct. 7. q. 6. §. huc accedit, pag. 255. Quod videtur probari ex promissione facta Petro, eiusque successoribus, ne eius fides deficiat, cum talis promissio non limitata, nec conditionata fuerit, si diligentiam adhiberet. At dicit Bannes 2.2. q. 1. a. 10. §. ad 4. pag. 115. si tota certitudo, & infallibilitas pendet ex assistentia diuini Spiritus, neque ad hanc assistentiam habendam praerequitur humana inquisitio, & inuestigatio de veritate; frustra	12. The third argument adduced in n. 5, by which it was argued that the Pontiff can err in a proposition of faith, was drawn from the diligence and inquiry which the Pontiff seems obliged to make in defining matters of faith. To this argument we answer in two ways. First, by affirming that this diligence is not necessary in order that the Pontiff define with certainty and infallibly, but only necessary that he proceed to the defining prudently and without sin — just as, to grant a dispensation, he must investigate the cause: not because such investigation is necessary for the validity of the dispensation, but because it is necessary for the right and fitting use of that jurisdiction; so in the present case. Hence if the Pontiff in fact proceeded to a definition with the due diligence omitted, it must be said that he would define the truth infallibly — so Valentia; and this seems proved from the promise made to Peter and his successors that his faith should not fail, since such a promise was not limited or conditioned on his applying diligence. But Bañez says: if the whole certainty and infallibility depends on the assistance of the divine Spirit, and if human inquiry and investigation of the truth is not prerequisite for having this assistance, then surely this inquiry is demanded in vain. Nor can the Pontiff be said to proceed temerarily and imprudently when he omits it, since he omits nothing on which the correct and infallible definition depends. Add that in omitting this human diligence he seems to trust more in the divine assistance and to signify to the faithful that the truths of faith are to

<i>Latin</i>	<i>English</i>
certe inquisitio haec expostulatur. Neque enim dici potest temerarie, & imprudenter Pontifex procedere, cum illam omittit, siquidem non omittit aliqua, ex qua recta, & infallibilis definitio pendeat. Adde omittendo hanc diligentiam humanam, videtur magis fidere in diuina assistencia, & fidelibus denotare non humano ingenio, sed diuino instinctu veritates fidei inuestigandas esse. Ergo vel est necessaria ad definiendum, vel nullo modo requiritur. Sed facile respondetur praecipi a Deo hanc humanam diligentiam adhiberi, quia vult, vt homines faciant quantum est in se ad veritatem inuestigandam; hoc enim ad rectum Ecclesiae regimen videtur pertinere: cum enim Pontifex non noua fidei dogmata Ecclesiae debeat proponere, sed iam Ecclesiae proposita, abscondita tamen in lucem producere, debet pro subiecta materia diligentiam adhibere, quodque praestitit D. Petrus, cum cessationem circumcisionis, & aliarum caeremoniarum definiuit, Act. 15. Quando autem aliquis defectus intercedit in tali diligentia adhibenda, illo non obstante protegit Deus suam Ecclesiam & ab errore liberat: impediendo Pontificem, ne definiat, vel si definiat, vt verum pronunciet. Secundo responderi potest cum Bannes, & Valent. supra, admittendo necessariam esse hanc humanam diligentiam, & in[?]... veritatis, vt Pontifex verum definiat: negamus [tamen in]ferri posse aliquando falsitatem definire, quia n[?]... si definiturus est, hanc diligentiam, & inquisi[tionem adhibe]re: atque adeo eadem certitudine, qua credi[mus	be investigated not by human ingenuity but by divine instinct. Therefore either it is necessary for defining, or it is in no way required. — But it is easily replied that God commands this human diligence to be applied because he wills that men do what lies in them to investigate the truth; for this seems to pertain to the right government of the Church: since the Pontiff must propose to the Church not new dogmas of faith, but must bring to light what has already been proposed to the Church though hidden, he must apply diligence proportioned to the subject matter — as St. Peter did when he defined the cessation of circumcision and of the other ceremonies (Acts 15). And when some defect occurs in applying such diligence, notwithstanding it God protects his Church and frees it from error, by preventing the Pontiff from defining, or, if he defines, by making him pronounce the truth. — Secondly one can reply, with Bañez and Valentia above, admitting that this human diligence is necessary [text damaged] in order that the Pontiff define the truth; but we deny that it can be inferred that he might at some time define a falsehood, because [he cannot fail to apply(?)] this diligence and inquiry if he is going to define; and so, with the same certainty with which we believe the Pontiff cannot err in a definition of faith, it must be believed that he cannot omit the due diligence for producing the definition, since it is a necessary means to it; for when Christ the Lord promised Peter and his successors the assistance of the divine Spirit for pronouncing the truth, he consequently promised to assist with the means necessary to it — just as if you promised that you would gather much fruit from a vineyard, you would consequently promise the mildness of the weather and the other things from which [the fruits] take their origin. And if you ask what diligence the Pontiff must

<i>Latin</i>	<i>English</i>
Pontifi]cem non posse errare in definitione fidei, debet c[redi non pos]se omittere debitam diligentiam ad hanc praesta[ndam defini]tionem: siquidem est medium necessarium ad ill[am ...] cum Christus Dominus promisit Petro, & eius s[uccessoribus] diuini Spiritus assistentiam ad veritatem pronunti[andam, con]sequenter promisit assistere mediis ad illud necessa[riis: sicut si] promississes te plures fructus ex vinea collecturum [...germi]natio(?), consequenter promisit(?) aeris temperiem, & reli[qua ...] ortum habent. Quod si inquiras quam diligentiam Pontifex an[te defini]tionem praestare debet? Respondeo breuiter cum Valentia disp. 1. quaest. 1. [p.] 7. §. 42. eam adhibendam esse, quam subiecta mater[ia po]stulat. Quare si de Sancto canonizando, aut de reli[quii(?)] probanda agitur, humana informatione, & historia v[ti ne]cesse est. Si vero determinaturus est dogma aliquod, v[t ve]rus(?) reuelatum, illa consulat oportet quibus diuina reuel[atio conserua]ta(?), atque integra custoditur. Cuius generis est primo S[criptura] sacra, vt quae tota est reuelatio diuina. Secundo tra[ditio Apo]stolica, quae & ipsa diuina quaedam reuelatio est, [non] tamen consignata litteris. Tertio definitio priorum Pontificum [&] Conciliorum. Quarto concors sententia Patrum, & D[octo]rum. Modus autem haec omnia inuestigandi non est vnu[s nec] idem, sed Pontificis arbitrio relinquitur; potest enim Concil[ium] congregare, vel absque illius congregatione ad definition[em] procedere. Item	apply before a definition, I answer briefly, with Valentia, that that diligence must be applied which the subject matter demands. Hence if it concerns a saint to be canonized, or relics(?) to be authenticated, human information and history must be used. But if he is about to determine some dogma as [truly(?)] revealed, he must consult those things in which divine revelation is preserved and kept intact. Of this kind are, first, sacred Scripture, as being wholly divine revelation; second, apostolic tradition, which is itself also a certain divine revelation, though not committed to writing; third, the definitions of previous Pontiffs and Councils; fourth, the concordant opinion of the Fathers and Doctors. The manner of investigating all these is not one and the same, but is left to the Pontiff's judgment: he can assemble a Council, or proceed to the definition without assembling one; likewise he can consult the Cardinals, or in their place other learned men and pastors of the Church — all of which is clear from the usage of the Church.

<i>Latin</i>	<i>English</i>
potest consulere Cardinales, vel loco illor[um] alios viros doctos, & Ecclesiae pastores, quae omnia ex vsu E[c]clesiae constant. 13 Ad quartum argumentum de Pontifice in haeresim lapso respondeo, si eius haeresis Ecclesiae manifesta est, facile liberabitur ab illo, quia tunc non agnoscit illum, vt pastorem, sed vt lupum ouile volentem destruere. At si haeresis non sit in Ecclesia nota, sed forte sub aliqua controuersia versetur, ipseque ex malitia, vel ignorantia vellet Ecclesiam inficere, nequaquam posse, quia antequam id praestaret, Deus illum e vita eriperet aut alia via impediret definitionem, aut tandem faceret, vt verum pronuntiaret: quae omnia necessario sequuntur via ordinaria ex promissione facta Ecclesiae, non defuturum in ea spiritum veritatis. Ad quintum de approbatione Pontificia scriptorum Basilii, Chrysostomi, Nazianz. &c. respondeo, Pontificem non approbasse omnia illorum dicta vera esse, & tanquam vera esse habenda; quia non erant canonici scriptores, sed declarauit eos bene scripsisse: hoc est, bona intentione, & zelo, qua cum intentione stare optime potest per ignorantiam non attigisse aliquando veritatem. Ad sextum, nego Pontificem vnquam falsum definiisse, neque definire posse, licet falsum senserit: quod non leuiter colligitur ex extrauaganti, quae incipit <i>Benedictus Deus in donis suis</i>, quam refert ad verbum Alphonsus de Castro lib. 4. aduersus haereses, verbo	13. To the fourth argument, about a Pontiff fallen into heresy, I reply: if his heresy is manifest to the Church, she will easily be freed from him, for then she does not acknowledge him as a shepherd but as a wolf bent on destroying the sheepfold. But if the heresy is not known in the Church, but perhaps is a matter of some controversy, and he, out of malice or ignorance, wished to infect the Church — he could by no means do so, because before he accomplished it God would take him from this life, or would prevent the definition by another way, or finally would bring it about that he pronounce the truth: all of which follow necessarily, in the ordinary course, from the promise made to the Church that the Spirit of truth will never be lacking to her. To the fifth, about the pontifical approbation of the writings of Basil, Chrysostom, Nazianzen, etc., I reply that the Pontiff did not approve all their statements as true and as to be held as true — for they were not canonical writers — but declared that they wrote well, that is, with good intention and zeal; and with such an intention it is perfectly compatible that through ignorance they sometimes failed to attain the truth. To the sixth, I deny that the Pontiff has ever defined a falsehood, or can define one, though he may have held a false opinion — which is gathered not lightly from the extravagant beginning “Benedictus Deus in donis suis,” which Alphonsus de Castro reports verbatim (book 4 Against the heresies, under the word “Beatitudo,” heresy 6, near the end) — nor is it commonly found in the body of the law — where Benedict XI [print; recte XII] indicates that his predecessor John XXII thought that

<i>Latin</i>	<i>English</i>
Beatitudo, haeresi 6. circa finem. neque inuenitur communiter in corpore iuris: vbi Benedict. XI. [sic; recte XII.] denotat eius antecessorem Ioannem XXII. existimasse animas Sanctorum ante diem iudicii diuinam essentiam non videre, non tamen sensum proprium Ecclesiae credendum proposuisse, etsi ad id faciendum se praeparasset: nam antequam id praestaret, vita functus est. Neque obstant loca ibi allata. Nam primum ex cap. quanto, de diuortiiis, ad summum probat Celestinum III. sensisse matrimonium dissolui per haeresim, non tamen probat sic Ecclesiae credendum proposuisse. Eodem modo respondetur ad text. in cap. licet, de sponsa duorum: esto enim aliqui antecessores Alexand. III. priuatim iudicauerint matrimonium ratum secundo consummato dissolui, non tamen sic determinasse. Adde nomine praedecessorum non Pontifices, sed alii(?) speciales Doctores possunt, & debent intelligi: siquidem in cap. vlt. eodem tit. de sponsa duorum, Innocent. III. declarat Sedem Apostolicam perpetuo docuisse matrimonium ratum secundo consummato non dissolui, vel denique dici potest Alexand. III. per exaggerationem fuisse locutum, sicuti locutus est Paulus ad Galat. 1. cum dixit, <i>licet nos, aut Angelus de caelo euangelizet vobis, praeterquam quod euangelizauimus, anathema sit</i>, vbi non intendit Apostolus dicere se, aut Angelum contrarium(?) esse euangelizatuos, sed veritatem euangelizatam ita esse firmiter tenendam, vt nulla via ab ea diuertere debeat, quamuis per impossibile ipse, vel Angelus de	the souls of the saints do not see the divine essence before the day of judgment, but did not propose his own view to the Church to be believed, although he had prepared himself to do so: for before he accomplished it, he died. Nor do the passages there adduced stand in the way. For the first, from c. Quanto, De diuortiiis, proves at most that Celestine III thought that marriage is dissolved by heresy, not that he proposed it to the Church to be so believed. In the same way one answers the text in c. Licet, De sponsa duorum: granted that some predecessors of Alexander III privately judged that a ratified marriage is dissolved by a second consummated one, they nevertheless did not determine it so. Add that by the name of “predecessors” not Pontiffs, but other particular Doctors can and should be understood; since in the last chapter of the same title De sponsa duorum, Innocent III declares that the Apostolic See has perpetually taught that a ratified marriage is not dissolved by a second consummated one. Or finally it can be said that Alexander III spoke by way of exaggeration, as Paul spoke to the Galatians (ch. 1) when he said, “Though we, or an angel from heaven, preach a gospel to you besides that which we have preached, let him be anathema” — where the Apostle does not mean that he or an angel would preach the contrary, but that the truth preached must be held so firmly that one ought in no way be turned from it, even if, per impossibile, he himself or an angel from heaven [should preach otherwise]. So Alexander said that a ratified marriage is not dissolved by a second consummated one, although his predecessors(?) had judged the contrary.

<i>Latin</i>	<i>English</i>
caelo [diuersum euangelizarent?]: sic dixit Alexand. matrimonium ratum non dissolui secundo consummato: quamuis contrarium praedecessores(?) iudicassent. [END of §. II]	